

26PSCV01379 26PSCV01379

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Case Number: 26PSCV01379 Hearing Date: August 10, 2026 Dept: 6

Plaintiff

Hilda de Jesus Calles Molina's Request for Entry of Default Judgment

Defendants: Maria Cristina Mathur, Twin Peaks Management Inc.,

Juan Francisco Romero, and Javier Becerra

TENTATIVE RULING

The

Court GRANTS Plaintiff's request for entry of default judgment in the amount of \$128,300.00 on the condition that Plaintiff first dismisses all of the Doe Defendants. Upon receipt of the request for dismissal of the Doe Defendants, the Court will modify and sign Plaintiff's proposed default judgment order. If Plaintiff does not dismiss the Doe Defendants within five calendar days of this ruling, the Court will DENY Plaintiff's request for entry of default judgment without prejudice.

BACKGROUND

This

is a fraud case. On April 15, 2026, plaintiff Hilda de Jesus Calles Molina (Plaintiff) filed this action against defendants Maria Cristina Mathur, Twin Peaks Management Inc., Juan Francisco Romero, and Javier Becerra (collectively, Defendants), alleging causes of action for breach of contract, fraud/intentional misrepresentation, promissory fraud, financial elder abuse, money had and received, conversion, unfair competition, civil conspiracy, aiding and abetting fraud, negligent misrepresentation, breach of fiduciary duty, securities fraud, and theft/Pen. Code § 496.

On July 6, 2026,
default was entered against the Defendants.

On July 17, 2026,
Plaintiff requested entry of default judgment against Defendants.[1]

LEGAL STANDARD

Code of
Civil Procedure section 585 permits entry of a default judgment after a party
has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party
seeking judgment on the default by the court must file a Request for Court
Judgment and: (1) a brief summary of the case; (2) declarations or other
admissible evidence in support of the judgment requested; (3) interest
computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration
of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all
parties against whom judgment is not sought or an application for separate
judgment under Code of Civil Procedure section 579, supported by a showing of
grounds for each judgment; (8) exhibits as necessary; and (9) a request for
attorneys' fees if allowed by statute or by the agreement of the parties. (Cal.
Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff
seeks default judgment against Defendants in the total amount of \$249,500.00,
including \$42,500.00 in principal damages, \$85,000.00 in special damages,
\$150,000.00 in treble damages, \$8,250.00 in interest, and \$6,000.00 in costs. The
Court finds some issues with Plaintiff's damage calculations. First, treble
damages under Penal Code section 496, subdivision (c), include the underlying
loss, which in this case is \$42,500.00, i.e., \$50,000.00 less the \$7,500.00
payments. (Compl., ¶ 7; see *Bell v. Feibush* (2013) 212 Cal.App.4th 1041,
1049.) Plaintiff's treble damages under Penal Code section 496, subdivision
(c), are therefore limited to \$127,500.00. (See *ibid.*; Pen. Code, § 496,
subd. (c).)

Second, although Plaintiff alleged a
cause of action for breach of contract, the alleged contract terms appear to be

usurious since they seek monthly interest payments of 5%, which equals 60% annually. (Compl., ¶ 12.) This far exceeds the general 10% interest rate limit for personal loans. (Korchemny v. Piterman (2021) 68 Cal.App.5th 1032, 1042.) “When a loan is usurious, the creditor is entitled to repayment of the principal sum only. He is entitled to no interest whatsoever.” (Ibid., 1042, internal quotation marks and citations omitted.) Additionally, the Complaint does not allege sufficient facts indicating that Twin Peaks Management Inc., Juan Francisco Romero, and Javier Becerra were parties to the contract. In fact, the alleged contract at most appears to be a promissory note from Maria Cristina Mathur to Plaintiff and does not mention the other terms alleged in the Complaint. (Compl., ¶¶ 11-15, Ex. A; Molina Decl., Ex. A [English translation]; Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 282 [“if the well-pleaded allegations of the complaint do not state any proper cause of action, the default judgment in the plaintiff’s favor cannot stand”].) Accordingly, the Court will award no prejudgment interest on the breach of contract claim.

Third, prejudgment interest on tort claims is within the trial court’s discretion. (Civ. Code, § 3288; Michelson v. Hamada (1994) 29 Cal.App.4th 1566, 1586.) The Court finds that trebling Plaintiff’s damages sufficiently compensates Plaintiff for any losses she may have sustained, including the time-value of money, therefore making an award of prejudgment interest duplicative. The Court therefore declines to award Plaintiff prejudgment interest.

Fourth, the Court finds Plaintiff’s costs claim overstated, specifically as to the \$5,200.00 in document preparation costs. (Amended Molina Decl., ¶ 12, subd. (e).) Such costs do not fall within the scope of costs permitted under Code of Civil Procedure section 1033.5. (See Code Civ. Proc., § 1033.5.) The Court therefore declines to award Plaintiff the requested \$5,200.00 in document preparation costs.

Based on the foregoing, Plaintiff’s damages and costs are limited to \$127,500.00 and \$800.00, respectively.

However, the Court notes a problem that needs to be resolved before the Court can grant default judgment. Specifically, Plaintiff did not dismiss any of the Doe Defendants. (Cal. Rules of Court, rule 3.1800, subd. (a)(7).) Plaintiff must do this before the Court can enter default judgment against Defendants.

Accordingly, the Court will GRANT Plaintiff's request for entry of default judgment in the amount of \$128,300.00 on the condition that Plaintiff first dismisses all of the Doe Defendants. Upon receipt of the request for dismissal of the Doe Defendants, the Court will modify and sign Plaintiff's proposed default judgment order. If Plaintiff does not dismiss the Doe Defendants within five calendar days of this ruling, the Court will DENY Plaintiff's request for entry of default judgment without prejudice.

CONCLUSION

The Court GRANTS Plaintiff's request for entry of default judgment in the amount of \$128,300.00 on the condition that Plaintiff first dismisses all of the Doe Defendants. Upon receipt of the request for dismissal of the Doe Defendants, the Court will modify and sign Plaintiff's proposed default judgment order. If Plaintiff does not dismiss the Doe Defendants within five calendar days of this ruling, the Court will DENY Plaintiff's request for entry of default judgment without prejudice.

[1] Plaintiff initially filed a motion for default judgment on June 17, 2026, and filed an amended notice of motion and motion on July 17, 2026. (Motion (6/17/26); Amended Motion (7/17/26).) Since Defendants' default was entered, the motions are unnecessary and the Court treats this as a request for entry of default judgment against Defendants. (See Requests for Entry of Default (7/6/26).)